IGNIS CARE LIMITED
30 Pipit Walk Hemel Hempstead HP3 0FR

Review Sheet

Last Reviewed 12 Mar 2026 | Last Amended 8 May 2024 | This policy will be reviewed as needs require or at the following interval: Annual

Business Impact:	LOW — Minimal action required. Circulate information amongst relevant parties.
Reason for this Review:	Scheduled review
Changes Made:	No
Summary:	This Fit and Proper Person - Directors (CQC) Policy and Procedure provides guidance and support on the measures and requirements in place at IGNIS CARE LIMITED. It has been reviewed with no significant changes. Underpinning Knowledge and Further Reading reference links have also been checked and updated.
Relevant Legislation:	• The Care Act 2014 • Companies Act 2006 • Employment Rights Act 1996 • Equality Act 2010 • Health and Social Care Act 2008 (Registration and Regulated Activities) (Amendment) Regulations 2015 • Nursing and Midwifery Council (NMC) Legislation • Protection of Freedoms Act 2012 (links to) The Protection of Freedoms Act 2012 (Disclosure and Barring Service Transfer of Functions) Order 2012 • Safeguarding Vulnerable Groups Act 2006 • Data Protection Act 2018 • The Health and Social Care Act 2008 (Regulated Activities) (Amendment) Regulations 2012 • UK GDPR • Sexual Offences Act 2003 • Police Act 1997
	• Author: NHS, (2024), Non- executive director - Appraisal good practice guide [Online] Available from: https://www.england.nhs.uk/non-executive-opportunities/wp-content/uploads/sites/54/2024/03/APPRAISAL-GOOD-PRACTICE-GUIDE-PDF-144KB.pdf [Accessed: 12/03/2026] • Author: Care Quality Commission, (2022), Fit and proper persons: directors [Online] Available from: https://www.cqc.org.uk/guidance-providers/regulations-enforcement/fit-proper-persons-directors [Accessed: 12/03/2026]

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Approved by IGNIS CARE LIMITED
Approved on: 15 March 2026
Approved by: Mohsin

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Underpinning Knowledge:	• Author: The Department of Health and Social Care, (2025), Care and support statutory guidance [Online] Available from: https://www.gov.uk/government/publications/care-act-statutory-guidance/care-and-support-statutory-guidance [Accessed: 12/03/2026] • Author: ICO, (2026), UK GDPR guidance and resources [Online] Available from: https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/ [Accessed: 12/03/2026] • Author: Equality and Human rights commission, (2015), Employment: Statutory Code of Practice [Online] Available from: https://www.equalityhumanrights.com/sites/default/files/employercode.pdf [Accessed: 12/03/2026] • Author: GOV.UK, (2025), Search the bankruptcy and insolvency register [Online] Available from: https://www.gov.uk/search-bankruptcy-insolvency-register [Accessed: 12/03/2026] • Author: Care Quality Commission, (2026), Enforcement [Online] Available from: https://www.cqc.org.uk/guidance-providers/regulations-enforcement/enforcement-policy [Accessed: 12/03/2026] • Author: Health and Care Professions Council, (2024), Standards of conduct, performance and ethics [Online] Available from: https://www.hcpc-uk.org/standards/standards-of-conduct-performance-and-ethics/ [Accessed: 12/03/2026] • Author: Care Quality Commission, (2023), Report a concern if you are a member of staff [Online] Available from: https://www.cqc.org.uk/contact-us/report-concern/report-concern-if-you-are-member-staff [Accessed: 12/03/2026] • Author: Care Quality Commission, (2025), Scope of registration: Introduction [Online] Available from: https://www.cqc.org.uk/guidance-providers/scope-registration [Accessed: 12/03/2026] • Author: Care Quality Commission, (2025), DBS checks for CQC registration [Online] Available from: https://www.cqc.org.uk/guidance-regulation/providers/registration/dbs-checks-cqc-registration [Accessed: 12/03/2026] • Author: Committee on Standards of Public Life, (1995), The Seven Principles of Public Life [Online] Available from: https://www.gov.uk/government/publications/the-7-principles-of-public-life [Accessed: 12/03/2026]
Suggested Action:	• Encourage sharing the policy through the use of the QCS App
Equality Impact Assessment:	QCS have undertaken an equality analysis during the review of this policy. This statement is a written record that demonstrates that we have shown due regard to the need to eliminate unlawful discrimination, advance equality of opportunity and foster good relations with respect to the characteristics protected by equality law.

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1. Purpose

1.1 To ensure that IGNIS CARE LIMITED Directors or equivalent are fit and proper persons in accordance with the requirements of The Health and Social Care Act 2008 (Regulated Activities) Regulations 2014: Regulation 5

1.2

Key Question	Quality Statements
WELL-LED	QSW5: Governance, management and sustainability
WELL-LED	QSW7: Learning, improvement and innovation

1.3 Relevant Legislation

- The Care Act 2014
- Companies Act 2006
- Employment Rights Act 1996
- Equality Act 2010
- Health and Social Care Act 2008 (Registration and Regulated Activities) (Amendment) Regulations 2015
- Nursing and Midwifery Council (NMC) Legislation
- Protection of Freedoms Act 2012 (links to) The Protection of Freedoms Act 2012 (Disclosure and Barring Service Transfer of Functions) Order 2012
- Safeguarding Vulnerable Groups Act 2006
- Data Protection Act 2018
- The Health and Social Care Act 2008 (Regulated Activities) (Amendment) Regulations 2012
- UK GDPR
- Sexual Offences Act 2003
- Police Act 1997

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2. Scope

2.1 Roles Affected:

- All Staff
- Other management

2.2 People Affected:

- Service Users

2.3 Stakeholders Affected:

- Family
- Advocates
- Representatives
- Commissioners

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- External health professionals
- Local Authority
- NHS
- Housing Provider Partners (Where applicable)

3. Objectives

3.1 To ensure that robust policies and processes are in place in relation to the appointment and monitoring of all IGNIS CARE LIMITED Directors.

3.2 To ensure that checks on the fitness of Directors is in accordance with Regulation 5 of the Health and Social Care Act Regulated Activities 2015.

3.3 To ensure that all IGNIS CARE LIMITED staff, including Directors, understand their responsibilities in relation to Regulation 5.

4. Policy

4.1 Importance of Directors

- IGNIS CARE LIMITED understands the important strategic role of its Directors, and the influence on the direction and culture of its services
- IGNIS CARE LIMITED recognises that individuals who have authority in organisations that deliver Support are responsible for the overall quality and safety of that Support

4.2 Checking the Fitness of Directors

IGNIS CARE LIMITED will make every reasonable effort to assure itself of an individual's fitness by:

- Checking that Directors have the qualifications, competence, skills and experience which are necessary for their role
- Ensuring that the individual is able by reason of their health, after reasonable adjustments are made, of properly performing tasks which are intrinsic to their role
- Assessing and checking the character of the individual to assess good character, and that they do not meet any of the 'unfitness' criteria
- Obtaining information listed under Schedule 3 of the Health and Social Care Act Regulations 2014 (as amended)

IGNIS CARE LIMITED will use all resources available at recruitment and for the duration of their role, through robust recruitment, management appraisal, disciplinary and dismissal processes in place to check the suitability of Directors.

4.3 DBS Checks

IGNIS CARE LIMITED will undertake DBS checks on Directors where the position and role meets the eligibility criteria for a DBS check.

In addition, where a Director meets the eligibility criteria, IGNIS CARE LIMITED must establish whether the person is on the children's and/or adult's safeguarding barred list and

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whether they are prohibited from holding the office in question under other laws such as the Companies Act or Charities Act.

4.4 Serious Misconduct and/or Mismanagement

IGNIS CARE LIMITED will not appoint a Director or continue to have a Director in post where the individual has been responsible for, been privy to, contributed to or facilitated any serious misconduct or mismanagement (whether unlawful or not) in the course of carrying on a regulated activity or providing a service elsewhere which, if provided in England, would be a regulated activity.

4.5 CQC Information

Where information of concern is highlighted to IGNIS CARE LIMITED by the CQC, IGNIS CARE LIMITED will respond within 10 days as to the decision they have made, and the process they have used to determine fitness/unfitness of a Director.

4.6 Taking Action

IGNIS CARE LIMITED will take action where information is received about a Director's fitness to establish whether they are fit for the role.

4.7 Where a Director is found to be 'unfit', IGNIS CARE LIMITED will follow the disciplinary and dismissal procedures at IGNIS CARE LIMITED, assessing and taking appropriate action available.

4.8 Notifications

IGNIS CARE LIMITED will notify the Care Quality Commission of changes of Directors when they occur through the CQC specified process.

4.9 Evaluation and Improvement

IGNIS CARE LIMITED will monitor and review its process to ensure that they are robust and fit for the purpose they are intended for.

Where evaluation identifies the need for change, IGNIS CARE LIMITED will update the process to reflect the changes needed.

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5. Procedure

5.1 Roles and Responsibilities

The Chair

The requirements of the Regulation are placed on the chair who is responsible for discharging the requirement placed on Ignis Care Limited to ensure that all Directors meet the fitness test and do not meet any of the ‘unfit’ criteria.

All Staff

All IGNIS CARE LIMITED staff have a duty to report concerning information regarding Directors.

IGNIS CARE LIMITED will support any individual who provides information of genuine concern, and Ignis Care Limited will follow the Whistleblowing Policy and Procedure.

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5.2 Appointments

All new appointments, including appointments of Directors, whether or not they are shareholders, must be conducted using recruitment policies, including;

- The Person Specification
- Recruitment and Job Start packs
- Directors should, in all circumstances, be subject to (as a minimum) the same assessment processes used for all employees
- DBS checks will be undertaken where the appointment meets the requirement
- Any other necessary checks such as bankruptcy and Director disqualification checks

Good Character

Care must be given to identify 'good character' through application and interview.

Qualifications, Skills and Experience

- Where qualification and/or registration with a professional regulator are required to undertake the role, only those with the correct qualifications/registrations will be considered, and certificates and registrations must be checked and recorded
- All skills and experience necessary will be specified in the personal specifications and subject to competence-based questions or tasks

Reasonable Adjustments

All reasonable adjustments must be made in accordance with the Equality Act 2010 to support individuals to undertake their role.

5.3 Non-compliance

Where a proposed Director is found not to be compliant with the requirements of Regulation 5, the non-compliant matter(s) must be investigated further. Where non-compliance is proven, Ignis Care Limited must decide if they consider that the matter does not materially affect the appointment.

If Ignis Care Limited decides that this is the case, and decides to appoint, they must provide in writing:

- Their deliberation process
- The evidence taken
- The reasons for having made the decision

Care will be taken in ensuring that the deliberation is reasonable, based on fact and the outcome is a logical result of the deliberation.

5.4 Annual Appraisal

- All Directors must be annually appraised, using IGNIS CARE LIMITED established procedures, in order to establish that they still meet the requirements of Regulation 5
- A self-declaration will also be signed at appraisal to indicate continued compliance

5.5 Training

Any training required will be kept up to date and new training and development identified both through appraisal and throughout the year.

5.6 Existing Directors Information Regarding 'Unfitness'

- Where information of concern relating to 'unfitness' is disclosed concerning an existing Director, Ignis Care Limited must promptly and thoroughly investigate the

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matter (as above)

- Where a breach is found, the directorship must be considered for termination, subject to a decision as to whether the issue relates to the role
- Where the issue does not directly breach the regulation and it is decided the directorship should not be terminated, an action plan and risk assessment will be drawn up in conjunction with the Director to safeguard against potential future risks concerning the matter along with a full explanation from the chair as to why the directorship is continuing
- Any action plan or risk assessment will be regularly reviewed and updated

5.7 Notifications

All changes in Directors will be notified to CQC immediately, using the correct notification form provided on the CQC website.

5.8 Monitoring and Evaluation

Information from:

- Complaints
- Surveys
- CQC information of concern and inspection

As well as formalised evaluation of the process, Ignis Care Limited should inform changes in the process to ensure that it is robust and fit for purpose.

5.9 Information Handling

- All information will be handled in line with UK GDPR and data protection laws
- Information will be stored in the individual's personal files and subject to retention policies and procedures

5.10 Interim Arrangements

Where an individual Director is being investigated and subject to suspension, interim arrangements must be put in place by the chair to ensure the smooth running of the board.

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6. Definitions

6.1 Unfitness

- Unfitness criteria in relation to Regulation 5 is set out in Schedule 4 of the regulations:
    - The person is an undischarged bankrupt or a person whose estate has had sequestration awarded in respect of it and who has not been discharged
    - The person is the subject of a bankruptcy restrictions order or an interim bankruptcy restrictions order or an order to like effect made in Scotland or Northern Ireland
    - The person is a person to whom a moratorium period under a debt relief order applies under Part VIIA (debt relief orders) of the Insolvency Act 1986(b)
    - The person has made a composition or arrangement with, or granted a trust deed for, creditors and not been discharged in respect of it
    - The person is included in the children's barred list or the adult's barred list maintained under section 2 of the Safeguarding Vulnerable Groups Act 2006,

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or in any corresponding list maintained under an equivalent enactment in force in Scotland or Northern Ireland
- The person is prohibited from holding the relevant office or position or, in the case of an individual, from carrying on the regulated activity, by or under any enactment

6.2 Good Character (CQC Definition)
- There is no statutory guidance as to how 'good character' in Regulation 5(3)(a) of the 2014 Regulations should be interpreted. However, the following are some of the features that are normally associated with 'good character':
  - Honesty
  - Trustworthiness
  - Integrity
  - Openness (also referred to as transparency)
  - Ability to comply with the law
- To consider that a Director is of 'good character', the registered provider should be able to regard the Director as a person in whom the provider, CQC, people using services and the wider public can have confidence, and who will comply with the law

6.3 Mismanagement
- Being involved in the management of an organisation or part of an organisation in such a way that the quality of decision making, and actions of the managers falls below any reasonable standard of competent management

6.4 Misconduct
- Conduct that breaches a legal or contractual obligation imposed on the Director
- It could mean acting in breach of an employment contract, breaching relevant regulatory requirements (such as mandatory health and safety rules), breaching the criminal law or engaging in activities that are morally reprehensible or likely to undermine public trust and confidence

6.5 Directors
- 'Directors' apply to a provider's board of Directors, board members and equivalents (referred to in this guidance as 'Directors'), who are responsible and accountable for delivering care, including associate Directors and any other individuals who are members of the board, irrespective of their voting rights
- Directors are the group of people constituted (formally or informally) as the decision-making body of the organisation
- The regulation applies to interim positions as well as permanent appointments
- It also includes trustees of charitable bodies and members of the governing bodies of unincorporated associations

6.6 'Serious' - In relation to misconduct or mismanagement (CQC)
- CQC states that providers will have to reach their own decision as to whether any facts that are alleged reach the threshold of being "serious misconduct or mismanagement"
- The Shorter Oxford English Dictionary defines serious as: "Important, grave, having (potentially) important especially undesired consequences, giving cause for concern of significant, degree, amount, worthy of consideration"

6.7 Schedule 3 Health and Social Care Act 2014 (as amended)
- Schedule 3 requires information required in Respect of Persons Employed or

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Appointed for the Purposes of a Regulated Activity

- This includes:
  - Proof of identity - including a recent photograph
  - Where required, a {DBS} or enhanced {DBS}
  - Satisfactory conduct in previous employment, health or social care, children or vulnerable adults
  - Where previously employed as above, the reason for leaving
  - Verifications of relevant qualifications
  - Full employment history with explanation of gaps
  - Satisfactory information about any physical or mental health conditions which are relevant to the person's capability, after reasonable adjustments are made, to properly perform tasks which are intrinsic to their employment or appointment for the purposes of the regulated activity

7. Key Facts - Professionals

Professionals providing this service should be aware of the following:

- Where a concern is identified, we will investigate and act on our findings
- All of our potential appointments and established Directors are subject to the Fit and Proper Persons: Directors requirement, Regulation 5 of the Health and Social Care Act Regulations 2015 (as amended)
- They have to meet criteria of good character, have the right skills and qualifications for the role, and not meet any of the unfitness criteria outlined in the regulation
- Everyone has an obligation to report concerning information, either to the provider, or to the Care Quality Commission. If you believe you have information of concern about a Director, it is important to report it
- IGNIS CARE LIMITED must check the fitness of appointments and monitor them on an ongoing basis

8. Key Facts - People Affected by The Service

People affected by this service should be aware of the following:

- We make checks on people that may become our Directors to make sure we comply with the law. We make sure potential Directors are of good character, have the right skills and knowledge for the job and do not have any of the 'unfit' criteria the law outlines
- We check all potential Directors. Some of these checks include checking their employment history, checking their qualifications and skills, and checking if they have any convictions
- The Care Quality Commission are the independent regulator for Health and Social Care. This means they check services are safe, caring, effective, responsive and well-led. They will check our processes around checking Directors to make sure they are good enough

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- IGNIS CARE LIMITED will continue to check that their Directors are 'Fit and Proper' and where they are not, IGNIS CARE LIMITED will take action to put this right. This may mean the person cannot become a Director, or can no longer be a Director
- IGNIS CARE LIMITED has a legal duty to make sure that their Directors are the right people for the job. The law says there are certain things a Director should and should not be

Further Reading

Care Quality Commission - Notifications:

https://www.cqc.org.uk/guidance-providers/notifications/notification-finder

GOV.UK Companies House – Being a company director:

https://www.gov.uk/guidance/being-a-company-director#full-publication-update-history

Outstanding Practice

To be "outstanding" in this policy area you could provide evidence that:

- Clear understanding from Managers of what is expected of Directors
- The wide understanding of the policy is enabled by proactive use of the QCS App
- Evidence of an open culture where genuine concerns identified are positively investigated in a responsive manner
- Service User involvement in the appointment of Directors

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